

Trade Marks Manual — Section 9 (Absolute Grounds) and Section 11 (Relative Grounds) for Refusal

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SECTION 1 — SECTION 9(1)(a): DEVOID OF DISTINCTIVE CHARACTER

A mark shall not be registered if it is devoid of any distinctive character, i.e. it is not capable of distinguishing the goods or services of one person from those of another. Common objection scenarios include:

- Marks consisting of common dictionary words that merely describe the goods (e.g. "PURE HERBAL" for herbal products).
- Laudatory terms ("BEST", "PREMIUM", "ORGANIC") used without additional distinctive elements.
- Marks that are the generic name of the product category itself.

SECTION 2 — SECTION 9(1)(b): DESCRIPTIVE MARKS

A mark consisting exclusively of signs or indications that may serve, in trade, to designate the kind, quality, quantity, intended purpose, values, geographical origin, or time of production of the goods, or other characteristics of the goods or services, is refused under Section 9(1)(b), unless the applicant demonstrates that the mark has, in fact, acquired a distinctive character through use prior to the date of application ("acquired distinctiveness" / secondary meaning).

SECTION 3 — OVERCOMING A SECTION 9 OBJECTION

Applicants may respond with:

1. Evidence of extensive prior use (invoices, sales figures, advertising spend, market share) supporting acquired distinctiveness.
2. A sworn affidavit/statement of use, ideally covering 3+ years, establishing consumer association between the mark and the applicant.
3. Amendment of the mark (e.g. adding a distinctive logo/stylisation, or a coined/arbitrary word element) where amendment is permissible without altering the substance of the mark.
4. Arguments distinguishing the mark from purely descriptive/generic use, e.g. showing the term is suggestive rather than directly descriptive.

SECTION 4 — SECTION 11(1): RELATIVE GROUNDS — LIKELIHOOD OF CONFUSION

A mark shall not be registered if, because of its identity or similarity to an earlier trade mark and the identity or similarity of the goods or services, there exists a likelihood of confusion on the part of the public, including likelihood of association with the earlier mark. Examiners conduct a comparative assessment considering:

- Visual, phonetic, and conceptual similarity of the marks.
- Similarity/identity of the goods or services and trade channels.
- Distinctiveness and reputation of the earlier (cited) mark.

SECTION 5 — OVERCOMING A SECTION 11 OBJECTION

1. File a response distinguishing the marks on visual/phonetic/conceptual grounds, supported by side-by-side comparison.
2. Obtain and submit a Letter of Consent / No-Objection Certificate from

the proprietor of the cited earlier mark, where obtainable.

3. Argue non-overlapping goods/services or trade channels, where accurate.

4. Where the cited mark's registration is vulnerable (e.g. five years' non-use), consider filing a rectification/cancellation action.

SECTION 6 — RESPONSE TIMELINE

Under Rule 38(1) of the Trade Marks Rules, 2017, a response to an examination report must ordinarily be filed within one month from the date of the report (extendable in limited circumstances), failing which the application is treated as abandoned.

DISCLAIMER: General summary for informational/demo purposes; verify against the current Manual of Trade Marks Practice and Procedure and the Trade Marks Act, 1999, as amended.